

**CHAPTER ii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Kilmarnock Corporation. A.D. 1904.
—
[29th March 1904.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Kilmarnock Corporation Order Confirmation Act 1904. Short title.

A.D. 1904.

S C H E D U L E.

KILMARNOCK CORPORATION.

Provisional Order to authorise the Provost Magistrates and Councillors of the Burgh of Kilmarnock to construct and work Tramways in and adjacent to the Burgh and for other purposes.

WHEREAS the burgh of Kilmarnock in the county of Ayr (in this Order called "the burgh") is a municipal burgh under the government of the provost magistrates and councillors thereof (in this Order called "the Corporation") :

And whereas the laying down of tramways within the burgh and in the neighbourhood thereof would be of public and local advantage and it is expedient that the Corporation be authorised to lay down construct and maintain the same accordingly :

And whereas it is expedient that such powers as are herein-after contained be conferred upon the Corporation to work or lease the tramways by this Order authorised to be constructed and to levy tolls rates and charges for the use of the tramways and to borrow money for tramway purposes :

And whereas plans and sections showing the lines and levels of the tramways by this Order authorised and also books of reference to those plans were duly deposited with the principal sheriff clerk of the county of Ayr at his offices at Kilmarnock and Ayr and are herein-after respectively referred to as the deposited plans sections and books of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited as the Kilmarnock Corporation Order 1904 and shall come into operation at the date of the passing of the Act confirming the same which date is herein-after referred to as "the commencement of this Order."

2. This Order is divided into parts as follows :—

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Financial.

A.D. 1904.

Order
divided into
parts.

PART I.

PRELIMINARY.

3. Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 so far as they are applicable for the purposes of and are not varied by or inconsistent with this Order are hereby incorporated with and form part of this Order.

Incorporation of
portions of
Tramways
Act 1870.

4. In this Order unless inconsistent with or varied by this Order the following words and expressions shall have the following meanings (that is to say) :—

Interpretation.

“The burgh” means the burgh of Kilmarnock as existing at the commencement of this Order ;

“The Corporation” means the provost magistrates and councillors of the burgh ;

“The Police Act” means the Burgh Police (Scotland) Act 1892 and Acts amending the same ;

“The police rate” means the burgh general assessment leviable under the Police Act ;

“Tramway revenue” means and includes all moneys received for or in relation to the tramways other than money borrowed and other money in the nature of capital ;

“Mechanical power” includes steam electric and every other motive power not being animal power ;

“Engine” includes motor ;

“The tramways” means the tramways authorised by this Order ;

“Sheriff” means the sheriff of the county of Ayr or any of his substitutes in the county of Ayr ; and

Expressions to which meanings are assigned in any Acts incorporated with this Order have for the purposes of this Order the same respective meanings.

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PART II.

TRAMWAYS.

Power to
make
tramways.

5. Subject to the provisions of this Order the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates foundations sleepers tubes pulley pits underground chambers shafts platforms turnouts crossings cross-overs passing-places junctions turn-tables manholes pillars poles brackets posts tubes wires cables chains engines dynamos sidings buildings sub-stations machinery apparatus waiting rooms stables engine houses carriage houses generating stations depôts works and conveniences connected therewith and may equip the same with the necessary plant and rolling stock Provided that nothing in this Order shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to which the provisions of section 15 of the first of the said Acts apply except in accordance with and subject to the provisions of that section The tramways herein-before referred to and authorised by this Order are—

Tramway No. 1—A tramway 2 miles 2 furlongs 6 chains or thereabouts in length consisting of 1 mile 7 furlongs 4·5 chains or thereabouts of single line and 3 furlongs 1·5 chains or thereabouts of double line situate wholly in the burgh commencing in the parish of Riccarton in the Ayr Road at a point at which that road is crossed by the southern boundary of the burgh and terminating in the parish of Kilmarnock in the Glasgow Road at the point at which that road is crossed by the northern boundary of the burgh :

Tramway No. 2—A tramway 1 mile 6 furlongs 6 chains or thereabouts in length consisting of 1 mile 5 furlongs 1 chain or thereabouts of single line and 1 furlong 5 chains or thereabouts of double line commencing in the parish of Riccarton in the county of Ayr at the Cross in the village of Hurlford at the junction of the roads leading respectively from Hurlford to Galston and Kilmarnock and terminating in Portland Street in the burgh by a junction with Tramway No. 1 at a point 1 chain or thereabouts north of the junction of that street with Cheapside :

Tramway No. 3—A tramway 4 chains or thereabouts in length (single line) wholly situate in the burgh and parish of Kilmarnock commencing in Low Glencairn Street by a junction with Tramway No. 1 at a point 17 chains or thereabouts south of the junction of West Shaw Street with Low Glencairn Street and passing for a distance of 4 chains or thereabouts along and terminating in the road leading from Low Glencairn Street to the Cattle Market and the new gasworks of the Corporation at a point in that road 3·5 chains or thereabouts west of the junction of that road with Low Glencairn Street :

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Tramway No. 4—A tramway 3·5 chains or thereabouts in length (single line) wholly situate in the burgh and parish of Kilmarnock commencing in King Street by a junction with Tramway No. 1 at a point 1·6 chains or thereabouts measured in a southerly direction from the junction of that street with Cheapside and terminating in Duke Street by a junction with Tramway No. 2 at a point thirteen yards or thereabouts measured in an easterly direction from the junction of that street with Regent Street.

The Corporation may on the lands described in the First Schedule to this Order and shown on the deposited plans but not under the powers of this Order elsewhere construct a station or stations for generating electric power and provide and use dynamos engines and other apparatus and things necessary or proper for the generation of electricity for the working and lighting of the tramways and may also on such lands erect maintain and use sidings depôts yards sheds offices and other works and conveniences in connexion with their undertaking and form such connexions as may be necessary between such sidings and the tramways The Corporation in lieu of erecting any generating station as part of their tramway undertaking may if they see fit supply and use for the purposes of that undertaking beyond as well as within the burgh electrical energy from any generating station provided and for the time being in use by them for the purpose of supplying electricity within the burgh under the Kilmarnock Electric Lighting Order 1899.

6. For the protection of the county council of the county of Ayr (in this section called "the county council") and the county road board and the Kilmarnock district committee of the county council as the local and road authorities within the said county the following provisions shall unless otherwise agreed between the

For pro-
tection of
county
council of
county of
Ayr.

A.D. 1904. — county council and the Corporation apply and have effect in relation to so much of Tramway No. 2 as is situate within the jurisdiction of the county council (and which portion of Tramway No. 2 is in this section referred to as “the tramway”):—

- (1) The tramway shall be laid down and maintained to the reasonable satisfaction of the Kilmarnock district committee of the county council (herein-after called “the district committee”) in the centre of the carriageway. Provided that when the lines and levels of the tramway have been laid out by the engineer of the Corporation the Corporation shall give notice thereof to the district committee and shall along with such notice submit plans and sections which shall be subject to the reasonable approval of the district committee and no portion of the work shall be commenced until such plans and sections and the lines and levels shown thereon have been reasonably approved by the district committee unless the district committee do not signify their approval or disapproval or other directions within twenty-one days of the receipt of such notice:
- (2) The Corporation shall at their own expense pave and maintain the tramway track between the rails as well as a margin of eighteen inches outside the rails on both sides and (to an extent of not less than twenty-two feet) all cross-overs crossing places and fixed stopping places with whin granite or other setts and shall also form bottom and metal (but shall not be bound to maintain) so much of the carriageway as is situate beyond the said eighteen inches for a distance of six feet on the north and of eight feet on the south side thereof and shall metal the remainder of the carriageway all to the reasonable satisfaction of the district committee:
- (3) The Corporation shall at their own expense and to the reasonable satisfaction of the county council—
 - (a) kerb the footpath on the north side of the tramway with hammer dressed whin setts ten inches by five inches;
 - (b) construct a gutter not less than one foot three inches in breadth with whin flats or split paving setts and place where necessary gully gratings connecting with the existing drains and such additional drains

(if any) as may be rendered necessary by the operations of the Corporation ; A.D. 1904.

(c) relay upon lines and levels to be reasonably approved by the district committee the said footpath where the same shall be disturbed by the operations of the Corporation :

- (4) The Corporation shall light the road on which the tramway is laid on the north side and the bridge known as Struthers Bridge by which the railway of the Glasgow and South Western Railway Company is carried over the road on both sides with gas or other light and the county council shall make over to the Corporation free of charge the use of the existing lamp posts lamps and apparatus connected therewith erected by the district committee for the purpose of lighting the said road where it passes through the village of Crookedholm and shall pay to the Corporation the sum of fifteen pounds in every year towards the cost to be incurred by the Corporation under this subsection :
- (5) All standards and poles erected by the Corporation for the purpose of the electrical equipment of the tramway shall so far as may be practicable be placed in the line of the kerb of the footpath on the north side of the tramway but no poles or standards shall be erected in any part of the carriageway of the road in which the tramway is laid :
- (6) The Corporation shall during the construction of the tramway leave such a sufficient and safe open carriageway as will admit of the usual traffic on the road being carried on without interruption :
- (7) The Corporation shall in constructing the tramway provide at such point as may be agreed upon by the Corporation and the district committee between the Hurlford Cross and a point on the tramway five hundred and twenty yards distant therefrom a conduit or way under the tramway across the carriageway and footpath thereof and for ten yards underground on the outside of the said carriageway and footpath respectively for the electric wire used or to be used by the district committee for the purposes of their Hurlford drainage undertaking or in the option of the district committee

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shall provide a conduit therefor along the said road between the said points to the satisfaction of the district committee :

- (8) The Corporation shall contribute such sum not exceeding one thousand pounds as shall be equal to one half of the cost incurred by the county council or the district committee in reconstructing and widening the bridge over the River Irvine at Hurlford to an extent of not more than forty-five feet and shall for a period of five years from the first term of Whitsunday or Martinmas after the date of the certificate of the Board of Trade of the fitness of the tramway for public traffic pay to the county council for behoof of the district committee at the expiry of each year during such period the sum of fifty pounds and thereafter the sum of one hundred pounds at the expiry of every year as a contribution towards the cost incurred by the district committee in maintaining the road in which the tramway is laid :
- (9) The powers conferred upon the Corporation by the section of this Order the marginal note whereof is "Power to make additional crossovers and to double tramway lines" shall not be exercised in relation to the tramway except with the consent of the county council :
- (10) In the application of section 43 of the Tramways Act 1870 to the tramway the period of thirty-five years from the date of the certificate of the Board of Trade of the fitness of the tramway for public traffic shall be substituted for the period of twenty-one years in that section mentioned :
- (11) If any difference shall arise between the Corporation and the county council under this section such difference shall be determined by an arbiter to be agreed upon between the Corporation and the district committee or failing agreement to be appointed on the application of either the Corporation or the district committee by the Board of Trade.

For protection of
Glasgow and
South West-
ern Railway
Company.

7. Whereas certain of the tramways will be laid along the street or roads which are carried over or pass under bridges belonging to the Glasgow and South Western Railway Company (hereinafter called "the company") Therefore the following provisions

shall unless otherwise agreed upon between the Corporation and the company apply for the protection of the company :— A.D. 1904.

(1) The Corporation shall not in the construction maintenance or use of the tramways injure alter or interfere with the structure or masonry iron steel or brick work of any bridge of the company or any of the works of such bridge or cause any interruption to the traffic on the railways of the company but the Corporation may attach insulator brackets to the undersides of the bridges of the company in such manner as not injuriously to affect the structure of the bridge Before commencing any works or operations affecting such bridges the Corporation shall submit plans and sections of their intended works to the engineer for the time being of the company and shall obtain his approval thereof and the said works and operations shall be constructed and carried out in conformity with the plans and sections so approved at the sight and to the reasonable satisfaction of such engineer and shall thereafter be maintained and repaired under his superintendence :

(2) If any injury to or any interference with any such bridge or works thereof or interruption to the traffic on the railways of the company shall arise or be occasioned at any time by the works or operations of the Corporation in connexion with the tramways and not by reason of any fault or neglect of the company or their servants or any person using their railways the Corporation shall forthwith make good or remove such injury interference or interruption at their own expense or in default of their doing so the company may execute the necessary works for that purpose at the expense of the Corporation and the Corporation shall repay to the company all costs and expenses incurred by them in so doing and all loss or damage sustained by the company in consequence of such injury interference or interruption :

(3) Nothing contained in this Order or which may be done in pursuance thereof shall prevent the company so far as they have power to do so from maintaining and repairing and when necessary altering or reconstructing such bridges or any of the works thereof or widening the lines of railway under their bridges without interference on the part of the Corporation in respect of the

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tramways and without incurring any liability to the Corporation or any lessees of the tramways or other parties working or using the same for any loss injury damage expense or interruption of traffic on the tramways which may arise from such maintenance repair alteration reconstruction or widening and any extra expense which the company may incur in such maintenance repair alteration reconstruction or widening by reason of the formation maintenance working or user of the tramways shall be paid by the Corporation Provided that all operations in connexion with such maintenance repair alteration reconstruction or widening shall be executed by the company in such manner as to cause as little interruption or inconvenience as practicable to the traffic on the tramways and that the company shall if necessary lay at their own expense temporary tramways to maintain the continuity of the tramway traffic and that the company shall give fourteen days' notice in writing to the Corporation before commencing any such operations and that the same so far as interfering with the tramways shall be conducted at the sight and to the reasonable satisfaction of the engineer of the Corporation :

- (4) In the event of the telegraphic telephonic or electrical signal communications of the company being at any time injuriously affected by induction or otherwise from the electric lines of the Corporation the Corporation shall be at the expense of such remedial works as may be necessary for the protection of the company and in the event of any difference between the Corporation and the company regarding the remedial works so to be adopted such difference shall be determined by an arbiter to be appointed by the Board of Trade as herein-after mentioned :
- (5) The Corporation shall not without the consent of the company apply to the Secretary for Scotland the Board of Trade or Parliament for power to construct any extension of 'Tramway No. 2 before the expiry of seven years from the passing of the Act confirming this Order or support any application within the like period in that behalf by any other company body or person :

(6) If any difference shall at any time arise between the Corporation and the company or their engineers with respect to any of the matters referred to in this section such difference shall be referred to and determined by an arbiter to be agreed on or failing agreement to be appointed by the Board of Trade on the application of either the Corporation or of the company and such arbiter shall have power to determine the matter in difference and the costs of the reference shall be borne and paid as such arbiter shall direct.

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8. No tramway shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade.

Inspection
by Board of
Trade.

9. If and whenever after the commencement of this Order the Corporation or any other road authority alter the level of any road along or across which any of the tramways is laid or authorised to be laid the Corporation may and shall alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways
to be kept
on level of
surface of
road.

10.—(1) In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation shall at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of constructing laying down maintaining and renewing any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction laying down maintenance and renewal of any of the tramways or part of any of the tramways respectively except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act.

Plan of pro-
posed mode
of construc-
tion.

(2) If any dispute shall arise between the Corporation and the road authority or the said surveyor under this section such dispute shall be referred to arbitration under the Tramways Act 1870.

11. The tramways shall be constructed on a gauge of four feet eight and a half inches Provided always that so much of

Gauge of
tramways.

A.D. 1904. section 34 of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the outer edge of the wheels of such carriage shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed seven feet or such other width more or less as may from time to time be prescribed by the Board of Trade.

As to rails
of tramways.

12. The rails of the tramways shall be such as the Board of Trade may approve.

Penalty for
not main-
taining rails
and roads.

13.—(1) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 as varied by this Order they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant rate-payers of such district that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

Power to
make addi-
tional cross-
overs and to
double tram-
way lines.

14.—(1) The Corporation may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove such crossings cross-overs passing places turnouts sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for forming junctions with other tramways or for providing access to any generating stations depôts warehouses stables or carriage-houses or works of the Corporation.

(2) Notwithstanding anything shown on the deposited plans the Corporation may with the consent of the Board of Trade lay

down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Corporation may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

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(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not except with the consent of the Board of Trade be so laid if the owners or occupiers of one third of such premises by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

15. Where by reason of the execution of any work affecting the surface and soil of any road along which any of the tramways are laid it is in the opinion of the Corporation necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Corporation may with the consent in writing of the road authority and subject to such conditions and in accordance in all respects with such regulations as the road authority may make construct in the same or any adjacent road and subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

Temporary tramways to be made where necessary.

If any difference arise between the Corporation and any road authority with respect to the reasonableness of any such conditions or regulations or with respect to the mode of constructing any temporary tramway or temporary tramways under the authority of this section the same shall be settled in the manner specified in section 33 of the Tramways Act 1870 for the settlement of the differences in that section mentioned.

16. Subject to the provisions of this Order the Corporation may during the execution of the works with the consent in writing of the road authority in whose district any road or bridge shall be

Stoppage of roads during execution of works.

A.D. 1904. — situate stop up temporarily the carriageway or footway of any road or bridge as they think necessary and for that purpose may put up bars posts and other erections Provided that the Corporation shall before stopping up any footway under this section provide a temporary substitute therefor.

Local and
road author-
ities to
have access
to sewers.

17. Every local and road authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Corporation and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of any local authority and road authority as if the same were a pipe for the supply of gas or water.

Application
of road ma-
terials exca-
vated in con-
struction of
works.

18. Any paving metalling or material excavated by the Corporation in the construction of the tramways or works from any road or bridge under the jurisdiction or control of any other road authority may be applied by the Corporation so far as may be necessary in or towards the reinstating of the road or bridge and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Corporation are by section 28 of the Tramways Act 1870 required to maintain and the Corporation shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit Any difference between the Corporation and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Period for
completion
of tramways.

19. If the tramways are not completed within two years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

20. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may provide (but shall not manufacture) place and run carriages on and may work and may demand and take tolls fares and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and may sell exchange and dispose of such of the before-mentioned articles and things as may be no longer required for such working or use.

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Power to
Corporation
to work
tramways.

21. The Corporation may erect and maintain waiting rooms or sheds for the accommodation of passengers and of the tramway servants of the Corporation at such places as they may determine or if outside the burgh as may be agreed upon with the road authority in whose district the said works will be situate.

Waiting
rooms or
sheds.

22. The tramways may be used for the purpose of conveying passengers and parcels.

Traffic upon
tramways.

23. The Corporation may subject to the provisions of this Order with respect to the periodical revision of rates and charges demand and take for every passenger travelling upon the tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile but in no case shall the Corporation be bound to charge a less sum than one penny.

Passengers'
fares.

24. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and at the responsibility of the passenger and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers.

Passengers'
luggage.

25. The Corporation may demand and take in respect of any parcels conveyed by them on the tramways including every expense incidental to the conveyance any rates or charges not exceeding the following :—

Rates for
parcels.

For any parcel not exceeding seven pounds in weight three-pence ;

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight five-pence ;

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For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence ;

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence ;

For any parcel exceeding fifty-six pounds but not exceeding one hundred and twelve pounds in weight such sum as the Corporation may think fit.

Corporation
not bound to
carry parcels.

26. The Corporation shall not be bound to carry on the tramways passengers' luggage exceeding the weight in this Order in that behalf mentioned nor any parcels.

Cheap fares
for labouring
classes.

27.—(1) The Corporation at all times after the opening of the tramways for public traffic shall and they are hereby required to run at least two carriages each way every morning in the week and every evening in the week (Sundays Christmas Day New Year's Day and any day appointed or recommended by the magistrates as a holiday within the burgh always excepted) at such hours not being later than seven in the morning or earlier (except on Saturdays) than five in the evening respectively as the Corporation think most convenient for artisans mechanics and daily labourers at fares not exceeding one halfpenny per mile (the Corporation nevertheless not being required to take any fare less than one penny) The Corporation on Saturdays in lieu of running such carriages after five o'clock in the evening may run the same at such hours between noon and two o'clock in the afternoon as they deem most convenient to the said persons.

(2) If complaint is made to the Board of Trade that a proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to the Board to be reasonable.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

As to fares
on Sundays
and holidays.

28. The Corporation or their lessees or any company or person working or using the tramways shall not take or demand on Sunday or on any holiday any higher fares than those levied by them on ordinary week days.

Payment of
tolls.

29. The tolls fares and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the

persons entitled to demand and take such tolls fares and charges may by notice to be annexed to the list of tolls fares and charges appoint.

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30. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the local authority or by twenty inhabitant ratepayers of any district in which the tramways or such portion are or is wholly or partly situate or by the Corporation that under the circumstances then existing all or any of the fares or other charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Board may subject to the maximum fares and charges authorised by this Order by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided that a copy of this section shall be annexed to every table or list of fares and charges published or exhibited by the Corporation.

Periodical
revision of
fares and
charges.

31.—(1) The Corporation may for the purpose of working any of the tramways by mechanical power construct lay down erect maintain renew and repair on in under or over the surface of any street or road including the footways thereof footpath bridge or public place in which any of the tramways will be situate such posts brackets and overhead or other electric conductors wires tubes mains plates electric cables and apparatus and may make and maintain in on or under any such surface such openings and ways as may be necessary or convenient either for the working of the tramways or for providing access to or forming connexions with any generating station of the Corporation or of any local authority company or person who may under the powers of this Order supply electrical energy to the Corporation or with any depôt car shed engine machinery or apparatus of the Corporation or for the purpose of any junction with any other tramway and may for those

Construction
of electric
works.

A.D. 1904. — purposes subject to the restrictions and provisions contained in Part II. of the Tramways Act 1870 open and break up any such street or road (including the footways thereof) footpath bridge or public place and raise alter remove replace and interfere with any lamp posts letter boxes sewers drains water or gas pipes tubes conductors telegraphic telephonic and electric wires posts and apparatus therein or thereunder Provided that all posts erected by the Corporation under the powers of this Order in any street or road (including footways) footpath bridge or public place above the level of the surface thereof shall be of such design and shall be placed in such position as shall be reasonably approved by the local authority for the district in which such posts are erected.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply.

Apparatus
used for
mechanical
power to be
deemed part
of tramways.

32. The provisions of sections 26 to 33 and 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the tramways.

Attachment
of brackets
&c. to build-
ings &c.

33. The Corporation may with the consent of the owner of any building or bridge attach to that building or bridge such brackets wires and apparatus as may be required for the working of the tramways by mechanical power :

Provided that—

(1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to the sheriff who shall have power having regard to the character of the building or bridge and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as he may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of the sheriff under this section shall not have effect after that owner ceases to be in possession of the building or bridge but any attachments fixed under the provisions of this section shall not be removed until

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the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the sheriff shall have the same powers as under proviso (1):

- (3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building or bridge.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rent shall be deemed to be the owner.

34. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say) :—

Provisions as
to motive
power.

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power :
- (3) The Corporation or their lessees or any company or person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

- (4) The Board of Trade if they are of opinion—

(A) That the Corporation or their lessees or any company or person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

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—

(B) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public;

may by order either direct the Corporation or their lessees or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or their lessees or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Special provisions as to use of electrical power.

35. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages:—

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such

insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :

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- (5) At the expiration of two years from the commencement of this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbiter to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbiter as the case may be :
- (7) The expression " Corporation " in this section shall include lessees licencees and any person owning working or running carriages or trucks over any tramway of the Corporation.

36. The Corporation on the one hand and any local authority company or person authorised to supply electrical energy on the other hand may enter into and carry into effect agreements with respect to the supply by such authority company or person of electrical energy to the Corporation for the purposes of their tramways both within and without the area of supply of such authority company or person or the supply by the Corporation to such authority company or person of electrical energy for any purpose for which such authority company or person may for the time being be authorised to supply electricity but such agreements

Agreements
as to supply
of electrical
energy.

A.D. 1904. shall in all respects be subject to the approval of the Board of Trade.

Alteration
of telegraph
lines of
Postmaster-
General.

37. Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protec-
tion of post
office tele-
graph lines.

38. In the event of any tramways of the Corporation being worked by electricity the following provisions shall have effect:—

- (1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation

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and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Corporation or their agents with respect to any requirement so made shall be determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the Court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph

A.D. 1904.
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office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression " electric line " has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbiter appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression " the Corporation " includes their lessees and any person owning working or running carriages on any of the tramways.

Byelaws.

39. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the tramways :

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places

and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

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For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

40. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Corporation be made by the Corporation alone.

Regulations
by Corpora-
tion.

41. The Corporation may by agreement purchase and acquire any lands and property not exceeding five acres for the purposes of the tramways but nothing in this Order shall exempt the Corporation from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands or property so acquired.

Power to ac-
quire lands
by agree-
ment.

42. For the purpose of using mechanical power it shall be lawful for the Corporation to acquire hold and exercise patent and other rights or licences (not being exclusive) relating to motive power or otherwise.

Power to ac-
quire patent
rights.

43. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction (Scotland) Acts.

Recovery of
penalties.

44. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any tramway of the Corporation anything which is calculated to obstruct or interfere with the working of such tramway or to cause injury to any person he shall (without prejudice to any proceedings by way of interdict or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50

Penalty for
malicious
damage.

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of the Tramways Act 1870 with respect to any tramway of the Corporation shall be liable to a penalty not exceeding twenty pounds.

Amendment
of Tramways
Act 1870 as
to byelaws
by local
authority.

45. The provisions of the Tramways Act 1870 relating to the making of byelaws by the Corporation with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the Corporation to make any byelaws sanctioning a higher rate of speed than that authorised by this Order or by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order Provided that carriages may be driven or propelled on the tramways at such speed not exceeding fifteen miles an hour as the Board of Trade may prescribe.

Orders &c.
of Board of
Trade.

46. All orders regulations and byelaws made by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board.

Railway car-
riages not to
be used on
tramways.

47. No carriages or trucks adapted for use upon railways shall be used upon the tramways.

Form and
delivery of
notices.

48. With respect to notices under this Order and to the delivery thereof by or to the Corporation the following provisions shall have effect (that is to say):—

(1) Every notice shall be in writing and shall be signed by the town clerk if given by the Corporation and by their clerk or secretary if given by any company or local authority or road authority:

(2) Any notice to be delivered by or to the Corporation to or by any local authority or any road authority or other body or company may be delivered by being left at the principal office of that authority body or company or at the town hall in the burgh (as the case may be) or by being sent by post addressed to their respective clerk or secretary at their principal office or to the town clerk at his office.

Power to
lease for
period be-
yond twenty-
one years.

49. Notwithstanding anything contained in section 19 of the Tramways Act 1870 the Corporation may lease to any company body or person the whole or any part of the tramways after construction or the right of user of the same and the right of levying tolls rates fares and charges in respect thereof for any period or periods not exceeding forty-two years in the whole upon such terms and conditions as may be agreed upon between the Corporation and any company or person taking a lease of the tramways.

50. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants servitudes rights and privileges as aforesaid respectively.

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Power to
owners to
grant servi-
tudes &c. by
agreement.

51. Where the consent or approval of any local or road authority is by this Order required before the exercise of any powers by the Corporation such consent or approval shall not be unreasonably withheld and if any difference arises as to whether any consent or approval is unreasonably withheld that difference shall be referred to an arbiter to be appointed on the application of either party by the Board of Trade.

Consents of
local or road
authority.

52.—(1) The Corporation shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
on taking
houses of
labouring
class.

(2) If the Corporation acquire or appropriate any house or houses for the purposes of this Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own

A.D. 1904. family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Provision as
to general
Tramway
Acts.

53. Nothing in this Order contained shall exempt the Corporation or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Order.

PART III.

FINANCIAL.

Statement
and balance
sheet and
estimates
to be laid
before Cor-
poration.

54. The Corporation shall once in each year after the first year's working by the Corporation of the tramways cause to be laid before them a statement and balance sheet of the tramway accounts including the reserve and suspense accounts for the preceding year and an estimate of the revenue to be derived for the ensuing year from the working and use of the tramways and carriages thereon and also an estimate of the sums required to meet for such year the expenses of working management maintenance of lines works machinery and rolling stock repairs renewals materials wages taxes and other outgoings and charges including allowances for depreciation and also the interest on borrowed money and the payment of the sums required to be annually made to the sinking fund and the Corporation shall thereupon fix annually the tolls fares and charges to be levied by them for the use of the tramways and of carriages used or propelled thereon for the said year then ensuing not exceeding the tolls fares and charges specified in this Order so that the revenue shall as nearly as possible meet the expenditure as before specified for each year Provided that if in any year the revenue exceeds such expenditure the Corporation shall deal with the surplus in manner provided by subsection (4) of the next succeeding section and that should there be a deficiency in any year it shall be provided for in the estimate for the following year by drawing from reserve account or varying the tolls fares and charges or reducing working expenses or be carried to a suspense account and reduced gradually over a period of years not exceeding five Provided also that in making the estimates aforesaid and balancing accounts at the end of such year the depreciation on machinery and plant shall be at the rate of three per centum on the first cost thereof.

55. The tramway revenue shall subject to the provisions of this Order be applied— A.D. 1904.

(1) In maintaining the tramways and so much of the streets in which the same are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870:

Application
of tramway
revenue.

(2) In paying all working and other expenses properly chargeable to revenue:

(3) In providing the interest on any moneys raised or borrowed by the Corporation for tramway purposes under the powers of this Order together with the amount necessary to be paid into a sinking fund or redemption fund to provide for the repayment of the moneys so raised or borrowed:

(4) The surplus after providing for such payments as aforesaid may be transferred by the Corporation if they think fit to a reserve fund or renewal fund for the purposes of the tramway undertaking or into a suspense account or may be applied in extending and developing the tramway undertaking or in increasing the amount required to be paid into any sinking fund or redemption fund in respect of money borrowed by the Corporation for tramway purposes but subject as herein-after mentioned no part of the surplus shall be paid to the credit of any rate until a reserve fund of at least ten per centum on the capital required for tramway purposes shall have been provided. Provided that if and whenever there shall be remaining in the hands of the Corporation any surplus on account of tramway revenue after payment of the charges and making the transfers and appropriations herein-before provided for such surplus shall be carried to the burgh general assessment.

56. The Corporation shall keep a separate account of all moneys expended by them for the tramway undertaking and the same shall be charged on the funds by this Order authorised to be borrowed for the purposes of that undertaking. Separate
account for
tramway
purposes.

57. The Corporation in addition to any money which they may have borrowed independently of this Order or which they are or may be authorised to borrow under the provisions of any public general Act may from time to time borrow at interest on the credit and security of the tramway revenue and of the police rate or. Power to
borrow for
tramway
purposes.

A.D. 1904 partly of the tramway revenue and partly of the police rate as they may resolve such sums of money not exceeding in the whole the sum of sixty-five thousand pounds as shall be necessary for the purposes of this Order and for paying the costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto (all in this Order called "tramway purposes") and if after having borrowed the said sums or any part thereof the Corporation pay off the same otherwise than by means of the sinking fund herein-after provided they may again borrow the amount so paid off and so from time to time Provided that if the police rate is by reason of its limitation insufficient along with the tramway revenue to enable the Corporation to raise the moneys required for tramway purposes on advantageous terms the Board of Trade may extend the limit of such assessment to such amount as they shall think fit.

Bonds for
borrowed
money.

58. All bonds to be granted for money to be borrowed for tramway purposes under the authority of this Order shall be executed in accordance with the provisions of section 9 of the Town Councils (Scotland) Act 1900 and may be in the form contained in the Second Schedule to this Order or to the like effect and the Corporation may grant bonds accordingly for the moneys so to be borrowed and may assign the tramway revenue and the police rate in security thereof and of the interest thereon and such bonds may be assigned in the form provided in section 377 of the Police Act.

Interest
warrants.

59. It shall be lawful for the Corporation to issue along with any such bond and during the period of any postponement of the term of payment thereof interest warrants in the form contained in the Third Schedule to this Order or to the like effect for the periodical payment of the interest to become due on the principal sum thereby secured during the period for which such bond is intended to subsist and the delivery to the Corporation or to any person on their behalf of any such interest warrant shall be a valid and sufficient discharge to the Corporation for the interest in respect of which the same was issued.

Borrowing
on cash
account.

60. It shall be lawful for the Corporation to accept and take from any bank or banking company credit on a cash account to be opened and kept with such bank or banking company to the extent to which the Corporation are by this Order authorised to borrow for tramway purposes and to make and grant bonds in manner aforesaid in security of the payment of the amount of such credit or of the sums advanced from time to time on such cash account

with interest thereon Provided always that the whole sum due and owing by the Corporation on such cash account and for money borrowed by them on bond as aforesaid shall not when taken together exceed the aggregate amount of the sum by this Order authorised to be borrowed for tramway purposes. A.D. 1904.

61. There shall be kept at the office of the town clerk of the burgh a register of the bonds for money borrowed for tramway purposes and within fourteen days after the date thereof an entry shall be made in the register of the number and the amount and date thereof and of the names and description of the parties thereto as stated in the deed and also the interest payable on the same. Such register shall be open to public inspection during office hours at the said office without fee or reward and any clerk or other person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds. Before such bond is delivered to the creditor a certificate of such entry shall be endorsed on such bond and signed by the said town clerk and all assignments of such bond shall be notified to the said town clerk who shall enter in the register aforesaid the date of the assignation the names of the parties thereto the number of the bond and the date it was notified or intimated and a certificate of such entry shall be endorsed on the said bond and signed by the said town clerk and the said bond being so certified the assignee his executors and assignees shall thereafter be entitled to the benefit of such bond in terms of such assignation. Register of bonds.

62. The Corporation shall subject to the provisions of this Order annually include in and as part of the police rate such sums as shall be necessary to meet any deficiency in the tramway revenue for paying the interest of any money borrowed by them for tramway purposes under the authority of this Order and the sums to be set apart annually as a sinking fund in respect thereof as herein-after in this Order provided. Rates to include interest and sinking fund.

63. Nothing herein contained shall prejudice or affect any bonds or securities which may have been granted by the Corporation for money borrowed by them previous to the commencement of this Order but the same shall as to the rates funds and property comprised therein respectively have priority over all money borrowed under this Order. Present bonds and securities by Corporation not to be prejudiced.

64. Any person lending or paying money under this Order to the Corporation shall not be bound to inquire as to the observance by them of any provisions of this Order or be bound to see to the Protection of lenders from inquiry.

A.D. 1904. application or be answerable for any loss or non-application of such money or of any part thereof.

Application
of money
borrowed.

65. All money borrowed by the Corporation under the authority of this Order for tramway purposes shall be applied to those purposes and to no other purpose whatsoever. Provided always that no such borrowed money shall be applied to any purpose for which capital is not properly applicable.

Order not to
restrict borrow-
ing powers of
Corporation.

66. Nothing in this Order shall restrict any of the powers of the Corporation under the Police Act or otherwise for borrowing money.

Sinking
fund.

67. The Corporation shall from and out of tramway revenue and the police rate on the security of which they are authorised to borrow for tramway purposes under the authority of this Order set apart annually as a sinking fund such sums as with the accumulations thereof by way of compound interest at a rate of three per centum per annum shall be from time to time calculated to be sufficient to pay off all the money borrowed under the authority of this Order for tramway purposes (excepting the costs charges and expenses of this Order) within thirty years and all money borrowed for paying such costs charges and expenses within five years from the respective dates of borrowing. Provided that the Corporation shall not be bound to pay any such sum in respect of moneys borrowed for tramway purposes (excepting the costs charges and expenses of this Order) until the expiration of three years from the commencement of this Order.

Investment
and appli-
cation of
sinking fund
and income
thereof.

68. The said sinking fund and the income arising therefrom shall be invested on any security in which trustees in Scotland are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money other than securities of the Corporation or in or on any mortgage bond debenture debenture stock corporation stock annuity rentcharge rent or other security authorised by or under any Act of Parliament passed or to be passed of any municipal corporation in Great Britain except the Corporation such securities not being securities transferable by delivery and shall be applied at such time as the Corporation shall see fit in or towards the repayment of moneys borrowed for tramway purposes under the authority of this Order in such order and manner as they deem proper. Provided that in case the income from investments of the sinking fund shall in any year fall short of the prescribed rate of accumulation the deficiency shall be made good out of the current tramway revenue and the current police

rate Provided further that whenever the Corporation repay any money so borrowed by them out of the said sinking fund they shall thenceforth until the whole of the moneys borrowed by them for tramway purposes under the authority of this Order is repaid pay annually into such sinking fund in addition to the amount by this Order directed to be set apart thereto a sum equal to the annual interest at the prescribed rate of accumulation of the moneys so paid off Provided also that whenever and so long as the yearly income arising from the said sinking fund shall be equal to the annual interest of the moneys borrowed as aforesaid and remaining due by the Corporation they may in lieu of investing such yearly income as aforesaid apply the same in payment of such interest and may during such periods discontinue the payments to the sinking fund by this Order directed to be made.

A.D. 1904
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69. If the Corporation out of the proceeds of the sale or disposition of lands or out of other moneys received by them on capital account for tramway purposes other than borrowed moneys repay any principal moneys borrowed for tramway purposes under the powers of this Order the payments to the sinking fund established under the provisions of this Order for the repayment of such principal moneys may be reduced to such extent and upon such terms as may be from time to time approved by the Secretary for Scotland.

Sinking
fund may be
adjusted in
certain
events.

70. The Corporation shall within two months after the expiration of each year during which any sum is by this Order required to be set apart for a sinking fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so set apart in respect of that year and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return the Corporation shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable If it appear to the Secretary for Scotland by any such return or otherwise that the Corporation have failed to set apart the sum required by this Order to be set apart for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised

Annual
return to
Secretary
for Scotland
with respect
to sinking
fund.

A.D. 1904. — by this Order the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either Division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

Bonds to be
lien on tram-
way revenue
and police
rate.

71. The bonds to be granted for money borrowed for tramway purposes under this Order shall until repayment thereof form a lien not only on the tramway revenue but also on the police rate and shall entitle the creditor under the same to recover the contents thereof from the Corporation and their officers out of such rate without prejudice to the remedy provided in the next following section.

For appoint-
ment of a
judicial
factor.

72. The mortgagees of the Corporation may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than six thousand pounds.

Costs of
Order.

73. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Order or otherwise in relation thereto shall be paid by the Corporation out of the police rate or out of the moneys to be borrowed by them under the authority of this Order.

SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

LANDS FOR THE GENERATION OF ELECTRICITY.

A portion of land containing an area of two acres two roods or thereabouts situated in the burgh and parish of Kilmarnock and bounded on the north by the road leading from Low Glencairn Street to the Cattle Market and the new gasworks of the Corporation on the east by Low Glencairn Street on the south by the River Irvine and on the west partly by the bank of the River Irvine and partly by other property of the Corporation.

THE SECOND SCHEDULE.

A.D. 1904.

FORM OF BOND.

Kilmarnock Corporation Tramways.

Bond No.

By virtue of the Kilmarnock Corporation Order 1904 we the Provost Magistrates and Councillors of the Burgh of Kilmarnock in consideration of the sum of _____ instantly advanced and paid to us for the purposes of the Kilmarnock Corporation Tramways by _____ do hereby bind and oblige the said burgh out of the revenues of the Kilmarnock Corporation Tramways and out of the burgh general assessment to pay at the term of _____ to the said _____ executors or assignees the said sum of _____ and also the interest thereof at the rate of _____ per centum per annum from the date hereof at the terms of Whitsunday and Martinmas in each year until the said sum is paid (declaring that as we have herewith delivered to the said _____ interest warrants or coupons for the interest to become due at the several terms prior to and at the term of payment before specified we shall not be bound to make payment of interest during the currency of this loan except on delivery of the said interest warrants or coupons at or after the date when they shall respectively fall due) and for the further security of the said _____ we do hereby assign to the said _____ executors or assignees such proportion of the said tramway revenues and of the said moneys to be raised under the said burgh general assessment as shall be equivalent to the said sum now paid to us and the interest thereon as aforesaid from the date hereof to the term of payment and we consent to the registration hereof for preservation and execution In witness whereof

(Here insert testing clause in common form.)

K.L. Witness.

M.N. Witness.

L.S.

A.B. Councillor.

C.D. Town Clerk.

A.D. 1904.

THE THIRD SCHEDULE.

FORM OF INTEREST WARRANT.

No.

The Kilmarnock Corporation Order 1904.

INTEREST WARRANT.

Kilmarnock Corporation Tramways.

Bond No. Dated 190 .

INTEREST WARRANT.

For		Pounds		Shillings	
	and	Pence	-	-	£
		Less Income Tax	.	-	-
					£

Payable on
Kilmarnock.

190 at

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